

3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$15,356.22, plus costs of \$1,003.61.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

4. 9:00 AM CASE NUMBER: C24-01160

CASE NAME: DENEA MARHX VS. INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
HEARING ON SUMMARY MOTION BY DEFENDANT INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL

FILED BY:

TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant International Church of the Foursquare Gospel. For the reasons set forth, the motion is **DENIED**.

Background

Plaintiff Denea Marhx was employed by defendant International Church of the Foursquare Gospel ("International Foursquare"), and specifically by its branch the Danville Foursquare Church, known as "The Rock." (Def. Separate Statement ("SS") of Undisputed Material Facts ("UMFs") 7, 8; Compl. ¶¶ 2, 3, 10.) Though Danville Foursquare Church was named as a separate defendant and legal entity, International Foursquare states The Rock is not a separate legal entity from International Foursquare. (UMF 7; Fry Decl. ¶ 1.)

Plaintiff alleges she was employed by International Foursquare beginning in 2006, was moved to the district office of International Foursquare in 2014 and began serving as Finance Director at The Rock in May 2017. (Compl. ¶¶ 10, 12.) She was terminated by The Rock on October 4, 2023, though she was rehired in a temporary capacity for between October 19, 2023 and January 7, 2024, when her temporary position expired. (Compl. ¶¶ 53, 57-61.)

Plaintiff alleges that she became aware of, and reported, several financial improprieties regarding the use of The Rock's funds and personal expenditures by The Rock's pastor, Rick Fry, and his family. (See *generally* Compl. ¶¶ 13-52.) Marhx alleges that her employment was wrongfully terminated in retaliation for her reporting unlawful and improper financial activities by The Rock, Pastor Fry, and his family members. (Compl. ¶¶ 41-61, 66-73, 75-79.)

Legal Standards for Ruling on Defendant's Motion

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense

to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661.) The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable, supra*, 159 Cal.App.4th at 1483.)

Defendant's Request for Judicial Notice

Defendant requests the Court take judicial notice of (a) International Foursquare's Articles of Incorporation filed with the California Secretary of State on December 30, 1927; (b) the Certificate of Amendment of the articles filed on November 1, 1977 with the California Secretary of State; and (c) the absence of any subsequent amendments to the articles. (Def. RJN ¶¶ 1-3 and Exhs. A and B; Evid. Code §§ 452(c) and (h).) The Court **GRANTS** the unopposed request, subject to the limitations on the scope of judicial notice. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same].) The Court notes that UMFs 1-6 addressing the formation of International Foursquare and its purposes are undisputed. (Pl. Resp. to UMFs 1-6.)

Defendant's Late Reply

Under Code of Civil Procedure section 437c(b)(4), revised effective as of January 1, 2025, a reply to an opposition to a motion for summary judgment is due 11 calendar days prior to the hearing. The reply was due on July 16, 2026. Defendant submitted its reply five days late on July 21, 2026, without any request for consideration of the late reply or explanation or excuse for the late filing. There is nothing in the record showing grounds for the Court's consideration of the late reply. However, even if the Court considered the late reply, the Court has concluded Plaintiff has demonstrated the existence of triable issues regarding the application of the ministerial exception under the circumstances.

Analysis

Plaintiff's complaint alleges a first cause of action for whistleblower retaliation in violation of Labor Code section 1102.5 and a second cause of action for wrongful termination in violation of public

policy. Plaintiff has dismissed her third cause of action for failure to reimburse her for certain expenses. (Req. to Dism. filed 7/6/2026.)

Defendant International Foursquare moves for summary judgment on the complaint in its entirety based on the "ministerial exception" founded on the religion clauses of the First Amendment of the U.S. Constitution. International Foursquare pled the ministerial exception as its 36th affirmative defense in its answer. (Ans. p. 8, ¶ 36.) Plaintiff opposes the motion, contending that she was not employed in a ministerial role, or at a minimum, that there are triable issues of fact as to whether her position meets the ministerial exception, precluding summary judgment.

A. Legal Background: Religion Clauses of the Constitution and the Ministerial Exception

Defendant relies on two United States Supreme Court decisions, *Hosanna-Tabor Evangelical Lutheran Church School v. EEOC* (2012) 565 U.S. 171 and *Our Lady of Guadalupe School v. Morrissey-Berru* (2020) 591 U.S. 732 which held that state and federal employment anti-discrimination laws did not apply to the hiring and firing of ministers of a religious organization because of the First Amendment's religion clauses. The principle is known as the "ministerial exception."

In *Hosanna-Tabor*, *supra*, 565 U.S. 171, in an employment discrimination claim by a teacher at a Lutheran school, the United States Supreme Court held that both the establishment clause and the freedom of religion clause of the First Amendment "precluded the government from interfering with the decision of a religious group to fire one of its ministers." (*Id.* at 181.) The Court cited decisions of the Courts of Appeals in cases dealing with Title VII of the Civil Rights Act of 1964, 42 U.S.C. §2000e *et seq.*, and other employment discrimination laws which "have uniformly recognized the existence of a 'ministerial exception,' grounded in the First Amendment, that precludes application of such legislation to claims concerning the employment relationship between a religious institution and its ministers." (*Id.* at 188.) The Court agreed such an exception exists, and it explained the rationale for the exception: "The members of a religious group put their faith in the hands of their ministers. Requiring a church to accept or retain an unwanted minister, or punishing a church for failing to do so, intrudes upon more than a mere employment decision. Such action interferes with the internal governance of the church, depriving the church of control over the selection of those who will personify its beliefs. By imposing an unwanted minister, the state infringes the Free Exercise Clause, which protects a religious group's right to shape its own faith and mission through its appointments. According the state the power to determine which individuals will minister to the faithful also violates the Establishment Clause, which prohibits government involvement in such ecclesiastical decisions." (*Id.* at 188-189.)

The Court expressly declined "to adopt a rigid formula for deciding when an employee qualifies as a minister." (*Id.* at 190.) Instead, the Court held that on the facts presented in that particular case, the teacher was subject to the ministerial exception: "In light of these considerations--the formal title given Perich by the Church, the substance reflected in that title, her own use of that title, and the important religious functions she performed for the Church--we conclude that Perich was a minister covered by the ministerial exception." (*Id.* at 192 [emphasis added].) The teacher in that case was a "called" teacher (called by God), trained in a course of theological study by the Synod, and held the title Minister of Religion, Commissioned, in contrast to lay teachers at the school who had no training requirement or were not required to be Lutheran. (*Id.* at 171.)

In *Our Lady of Guadalupe*, *supra*, 591 U.S. 732, two teachers made claims against two Catholic religious schools alleging employment discrimination in the schools' decision not to renew the teachers' respective one-year employment contracts. The United States Supreme Court held that the ministerial exception applied to the teachers, reversing rulings by the Ninth Circuit which reversed trial court rulings granting summary judgment to the defendant schools.

In addressing whether the ministerial exception applied, the Court explained that "[w]hat matters, at bottom, is what an employee does." (*Id.* at 753-754.) Applying the principles of the ministerial exception from *Hosanna-Tabor*, the Court held the claims of the teachers in that case fell within the exception: "When a school with a religious mission entrusts a teacher with the responsibility of educating and forming students in the faith, judicial intervention into disputes between the school and the teacher threatens the school's independence in a way that the First Amendment does not allow." (*Id.* at 762.) The Court found that the Ninth Circuit improperly relied on the factors cited by the Court in *Hosanna-Tabor* as a rigid test that must be met for the ministerial exception to apply. (*Id.* at 760-762 [stating the Ninth Circuit "treated the circumstances that we cited in *Hosanna-Tabor* as factors to be assessed and weighed in every case" and noting the Court in *Hosanna-Tabor* expressly declined to create a rigid text].) Rather, the Court stated that the four factors in *Hosanna-Tabor* are "not inflexible requirements and may have far less significance in some cases," such that courts must "take all relevant circumstances into account" and determine whether the particular position at issue "implicate[s] the fundamental purpose of the exception." (*Id.* at 753, 758.)

In holding that the teachers in *Our Lady of Guadalupe* were within the ministerial exception, the Court explained, "There is abundant record evidence that they both performed vital religious duties. Educating and forming students in the Catholic faith lay at the core of the mission of the schools where they taught, and their employment agreements and faculty handbooks specified in no uncertain terms that they were expected to help the schools carry out this mission and that their work would be evaluated to ensure that they were fulfilling that responsibility. As elementary school teachers responsible for providing instruction in all subjects, including religion, they were the members of the school staff who were entrusted most directly with the responsibility of educating their students in the faith. And not only were they obligated to provide instruction about the Catholic faith, but they were also expected to guide their students, by word and deed, toward the goal of living their lives in accordance with the faith. They prayed with their students, attended Mass with the students, and prepared the children for their participation in other religious activities." (*Id.* at 756-757 [emphasis added].)

Defendant cites a number of other decisions in which the ministerial exception has been applied, including decisions in the Ninth Circuit and from federal courts in other circuits. While the Court is bound by decisions of the United States Supreme Court, the decisions of lower federal courts including the Ninth Circuit are persuasive but not binding authority in California trial courts. (*Ehrenkranz v. San Francisco Zen Center* (2026) 116 Cal.App.5th 977, 995 [citing *Lorenzo v. San Francisco Zen Center* (2025) 116 Cal.App.5th 258, 276 review granted February 11, 2026, 583 P.3d 51, 52 [to address whether ministerial exception "categorically" precludes "wage and hour claims by a minister against a religious organization without any inquiry into whether the claim touches upon any ecclesiastical concern"].)

B. California Decisions Addressing the Ministerial Exception

The parties direct the Court to several published California decisions addressing the ministerial exception. *Gunn v. Mariners Church, Inc.* (2008) 167 Cal.App.4th 206 applied the ministerial exception to statements made by church officials to the congregants after termination of the plaintiff's employment as worship director of the church after the church discovered he was homosexual. The plaintiff conceded the church's "actions were religiously motivated and in furtherance of its established church policy regarding termination of ministerial leaders in the church," and the Court held that the ministerial exception barred the plaintiff's claims in that case, as the court would necessarily involve inquiry into the doctrinal beliefs of the church, in violation of the First Amendment. (*Id.* at 208, 216-217.) In *Gunn*, there was no dispute as to whether or not the ministerial exception applied to the decision to fire the plaintiff; as the worship director, he clearly was a minister.

Henry v. Red Hill Lutheran Church of Tustin (2011) 201 Cal.App.4th 1041 held the ministerial exception barred the plaintiff's wrongful termination claim, which she brought after she was terminated for living with her boyfriend and raising their child without being married. (*Id.* at 1045.) Plaintiff was employed by the church's preschool as a teacher and director, she taught religion and led bible study with her students, she was required to attend weekly devotionals and pray for her fellow teachers, and she attended weekly chapel services with the preschool, at which she was one of the teachers who led the chapel services on a rotating basis. (*Id.* at 1046-1047.) The written professional expectations established by the school for teachers each year required her "to serve as a Christian role model to the students and their parents, both in and out of school." (*Id.* at 1046.) The Court concluded the ministerial exception applied, explaining that one of the purposes of a ministerial employee is "to bring people to the church. Henry fulfilled that function by teaching her preschoolers religion, leading them in prayers every day, and leading chapel services. She taught religion and spread the faith." (*Id.* at 1055.)

In *Atkins v. St. Cecilia Catholic School* (2023) 90 Cal.App.5th 1328, a former employee of a Catholic school sued for age discrimination after her position was terminated. She worked as an office administrative assistant and was a fine arts teacher at the school. The Court of Appeal reversed the trial court's order granting summary judgment to the school based on the ministerial exception. Considering all the relevant circumstances, the Court found there were triable issues of fact as to whether the plaintiff's role fit the ministerial exception: "While St. Cecilia presented evidence that Atkins prayed with the students in her art class and promoted the ADLA's [Archdiocese of Los Angeles's] six tasks of catechesis by encouraging "Christ-like" behavior in her class, there was no evidence that she ever taught, or was expected to teach, any type of religious curriculum. There was also no evidence that Atkins ever led any religious services, accompanied the students to religious services, or prepared the students to participate in religious services or activities. Given that Atkins held dual roles at St. Cecilia as an art teacher and an office administrator, we cannot conclude on this record that educating students in the Catholic faith lay at the core of her job responsibilities." (*Id.* at 1345.) Plaintiff's office administration work was "purely secular." (*Id.* at 1345.)

Defendant cites *Schmoll v. Chapman University* (1999) 70 Cal.App.4th 1434, a case which held that the First Amendment religions clauses precluded the plaintiff's claim for violations of the Fair Employment and Housing Act, Government Code section 12940, *et. seq.* The plaintiff in that case was

the chaplain and director of campus ministry for Chapman College, a university affiliated with the Disciples of Christ church. (*Id.* at 1436.) The Court held that the First Amendment protected the university's decisions affecting its minister's employment, whether the decisions were made based on religious doctrine or economics and whether they involved hiring, firing, discipline, or changes in the terms of the minister's employment. (*Id.*) There was no dispute in that case that the chaplain qualified as a minister for purposes of the ministerial exception.

Plaintiff cites *Hope International University v. Superior Court* (2004) 119 Cal.App.4th 719, a case involving employment discrimination claims against a university affiliated with the Church of Christ, a university which was clearly a religious institution. (*Id.* at 724.) The Court could not say "*as a matter of law* that the ministerial exception applie[d]" to the plaintiffs, two professors who were married to each other and taught psychology classes at the university. (*Id.* at 724, 725-726 [italics in original].) It examined numerous decisions applying the ministerial exception, categorizing the cases as either "relatively easy cases" or "relatively harder cases." (*Id.* at 734-738.) Notably, the *Schmoll* decision was in the "relatively easy" category. (*Id.* at 734.)

In finding there were triable issues as to whether ministerial exception applied to the professors in that case, the Court noted that the case law is fairly clear that "teachers of clearly *secular* subjects have . . . been held not to be within the exception, even though incidentally the teacher may have been a member of a religious order," and "purely secular work performed for a religious institution has been held not to come within the ministerial exception." (*Id.* at 738 [italics in original].) The Court elaborated on the latter point: "We might describe this as 'the janitor rule' – as in: there's no question that the cleaning staff do not come within the ministerial exception (except maybe at a traditional monastery, where the cleaning staff *are* the members of the religious order and the cleaning is seen as a very religious work indeed)—though of course it also extends to other sorts of work," citing decisions involving a church receptionist, a pastor's secretary, and a director of plant operations at a hospital with a religious affiliation. (*Id.* [italics in original].) Applying the case law to the professors in that case, the Court relied on the principles of summary judgment that "disputes of fact are decided in favor of the *nonmoving* party," that psychology is not necessarily a religious subject and that their classes on marriage and family counseling were not necessarily religious. (*Id.* at 738-739.) As a result, the moving party had not demonstrated as a matter of law that the ministerial exception applied to the plaintiffs and barred their discrimination claims.

Defendant cites *Catholic Charities of Sacramento, Inc. v. Superior Court* (2004) 32 Cal.4th 527. That case is inapposite; it did not address the application of the ministerial exception to an employment claim.

C. Undisputed Facts

The motion is supported by Defendant's SS and multiple declarations. The Thomas Declaration addresses the third cause of action, which has been dismissed. (*See* Thomas Decl.; Issue 2 UMFs 50-54.) With the dismissal of the third cause of action, only "Issue 1" in the SS addresses the two causes of action as to which Defendant must establish a complete defense to in order to prevail on its motion for summary judgment. (UMFs 1-49.)

More than half of International Foursquare's UMFs are not disputed by Plaintiff or not disputed on a material point. (UMFs 1-11, 12 [disputed only as to the date she joined the Senior Leadership Team

("SLT")), 13-15, 20, 22, 23 [disputed only as to whether she joined SLT concurrent with promotion], 31, 32, 36, 39, 43, 45-49; Pl. Resp. to UMFs 1-15, 20, 22, 23, 31, 32, 36, 39, 43, 45-49.) International Foursquare operates a church in Danville known as The Rock. (UMF 7; Pl. Resp. to UMF 7.) Since 2012, Mr. Fry has been the Senior Pastor for The Rock. (UMF 10.) Ms. Marhx was hired in May 2017 and given the job title of Finance Director. (UMFs 8, 9.) She was later asked by Pastor Fry to join the SLT, though she disputes that she joined the SLT in 2020 and contends she joined in October 2021, concurrently with her promotion to Director of Finance and Operations. (UMFs 11, 12, 22, and 23; Pl. Resp. to UMFs 11, 12, 22, and 23; Marhx Decl. ¶ 41.)

Plaintiff does not dispute that in her role with The Rock, she oversaw the Finance, Human Resources, Facilities, IT, Events, and Coffee and Hospitality departments. (UMF 24; Pl. Resp. to UMF 24.) She disputes Defendant's characterization of the departments in a parenthetical as "ministries," but cites no evidence to support that dispute in response to that particular UMF. She disputes UMF 25 and other UMFs relevant to whether her role was as a "minister" overseeing "ministries" rather than as a secular employee overseeing the secular functions of the church at The Rock. (*See, e.g.*, UMF 25; Pl. Resp. to UMF 25 [citing, among other evidence, Wong DT 117:2-6 ["when you work at a church, we just label things ministry even though the day-in/day-out, her tasks were functional, not ministerial," referring to Plaintiff's tasks].)

There is no dispute that "pastoral care" involves providing "spiritual, physical, and emotional support." (UMF 20; Pl. Resp. to UMF 20.) The SLT was responsible for "carrying out the vision of the Church" and for decisions affecting the Church, in a manner "aligned with the Church's mission and the will of God." (UMFs 13-15; Pl. Resp. to UMFs 13-15.) There are seven members of the SLT including Pastor Fry and Marhx. Plaintiff held herself out as a leader of the Church to staff and Church members. (UMFs 31, 32; Pl. Resp. to UMFs 31, 32.) Marhx assisted in planning Church retreats and prayed alongside Church members. (UMFs 36, 39; Pl. Resp. to UMFs 36, 39.)

Plaintiff contends that UMFs 33 and 34 are disputed in part. Plaintiff does not deny the general statements that she led staff devotions and led prayer for the prayer room, but she presents evidence that she performed each of those activities only twice in six years of work for The Rock, disputing the implication that these activities were a common part of her responsibilities. (Pl. Resp. to UMFs 33, 34.) Plaintiff also does not dispute that she helped "plan" memorial services and funerals held at the church, which is the language used in UMFs 37 and 38. Rather, she disputes that her assistance was more than logistical or operational. (Pl. Resp. to UMFs 37, 38.) Again, she essentially disputes the implication that her "planning" assistance involved religious aspects of those events.

In February 2023, Plaintiff made a written application to become a licensed minister with International Foursquare. (UMF 43; Pl. Resp. to UMF 43; Fry Decl. ¶ 12 and Exh. A.) Plaintiff does not dispute the content of her licensed minister application, in which she describes feeling "called" in her relationship with her team to pray, to allow time in the prayer room so the staff does not get burned out, and to bring unity to her team by having a monthly team meeting that includes praying, discussing what they are working on, and encouraging one another. (UMFs 45, 46; Pl. Resp. to UMFs 45, 46.) She described her role as Director of Operations and Finance as "hard work" but said doing this "for the Lord as well as [creating] a place so that others come to know Him is amazing." (UMF 47; Pl. Resp. to UMF 47.)

Marhx participated in a decision on the use of the Church "Benevolence" fund for expenses for a relative of Pastor Fry in September 2023. (UMF 48; Pl. Resp. to UMF 48.) She stated in an email that she wanted to make a "wise and prayerful decision" and saw her role as Director of Finance as making a decision "that is God led, God fearing, and God honoring," recognizing the resources the Church had been given were resources "given out of the goodness of hearts who in their own obedience to the Lord who have entrusted us to steward it well." (UMF 49; Pl. Resp. to UMF 49.)

D. Disputed Material Facts and Plaintiff's Additional Material Facts

The Court finds that a number of Defendant's UMFs are genuinely disputed by Plaintiff's opposing evidence and Plaintiff's approximately 78 Additional Material Facts included in her Response to the SS. (*See generally* Pl. Additional Facts ("AFs") 55-133.) Plaintiff has genuinely disputed the characterization of her role and "participation" on the SLT with evidence that she was only put on the SLT to keep her in the information loop regarding Church plans and events material to her role in managing the finances, operations, and facilities of the Church, but that she did not participate in the spiritual vision or direction of the Church. (UMFs 16, 17, 18; Pl. Resp. to UMFs 16, 17, 18.) Rather, Pastor Fry controlled the vision and direction of the Church, the Council's role was not to deal with the vision or direction of the Church, and her role was to execute Pastor Rick's vision in directing operations, facilities, and the financial resources of the Church. (*Id.*)

Plaintiff has also genuinely disputed that as Director of Finance and Operations and a member of the SLT, she was responsible for providing "pastoral care" to the Church members or staff, or that Pastor Fry gave her guidance on how to do so. (UMFs 19, 21, 28-30; Pl. Resp. to UMF 19 [evidence indicating, among other things, that the pastoral care team was for the congregation, not staff, explaining the heads of the pastoral care team "were loving on staff because they were staff, but it wasn't an official duty from that role." (Fry DT 88:13-21); Marhx did not "perform pastoral care" (Wong DT 64:24-25), Executive Pastor Wong "wouldn't classify taking care of your – or loving on your staff as a Christian pastoral care. Pastoral care is very specific. It is primarily for the flock . . . , " and showing love to staff not a directive as part of her title but because she is a good Christian (Wong DT 65:1-12, and 65:23-66:3)], UMFs 21, 28-30; Marhx Decl. ¶¶ 62, 66, 67, 86-92, among others.)

Though certain departments were labeled as "ministries," there is a genuine dispute as to whether the label accurately described the functions Plaintiff performed in carrying out the work of the different departments. (UMFs 25-27; Pl. Resp. to UMFs 25-27.) The evidence also supports a genuine dispute as to whether she "ministered" to staff members. (UMF 35; Pl. Resp. to UMF 35; *see also, e.g.*, Marhx Decl. ¶¶ 88-94.) Plaintiff has genuinely disputed that she gave spiritual advice to members of The Rock (UMF 40) in light of Defendant's definition of pastoral care (UMF 20); Plaintiff's supervisor Pastor Wong in her deposition denied that Plaintiff performed pastoral care. (Pl. Resp. to UMF 40 [citing, among other things Wong DT 64:24-25 and 65:1-12].)

Plaintiff disputes that she was "required to uphold the truth of God's Word" and "ensure that biblical principles guided all of her decisions and actions" at The Rock and in the community. (UMFs 41, 42; Pl. Resp. to UMFs 40, 41.) Among other things, Marhx declares that in performing her job duties, she "used legal compliance standards, professional accounting principles, and operational criteria, not theological judgment" nor did she "apply theological principles or biblical interpretation to any of [her] financial or operational decisions." (Marhx Decl. ¶ 97.)

Plaintiff also includes numerous additional material facts supported by Plaintiff's evidence. In particular, the additional facts include that: (1) she was not hired as or represented to the congregation or staff to be a minister, pastor, or spiritual leader; (2) she was not classified by The Rock as ministerial for purposes of taxes, wage compliance, or benefits; (3) Pastor Fry set the religious vision and direction of The Rock, with some input from Pastor Wong; (4) Plaintiff's job duties were secular, operational and finance duties, and the departments she oversaw were not referred to as ministries; (5) she did not have autonomous decision-making authority over the use of church funds; (6) she did not have hiring or firing authority; (7) Plaintiff was not one of the employees whose job duties included pastoral care for the congregation; (8) she was not required to provide pastoral care to her staff, and when staff needed that care, she referred them to Pastors Fry or Wong; (9) everyone at The Rock, including the janitor, led prayer in the prayer room, but leading prayer was not a requirement of her job; and (10) Plaintiff had no religious training, background, or credentials. (See Pl. AFs 56-62, 68, 70-73, 76-85, 87-91, 93, 95, 98, 101, 102, 105-128.) Plaintiff declares that her performance was reviewed based on the adequacy of her performance of financial, human resources, facilities and operational tasks and not based on her faith, any religious criteria, or performance of pastoral care. (Marhx Decl. ¶ 95.)

E. Application of the Case Law to the Record on the Motion

Plaintiff was clearly employed by a religious institution. The determinative issue on the motion is whether International Foursquare has demonstrated as a matter of law that Plaintiff's role with The Rock as its Director of Finance and Operations was a "minister" within the ministerial exception, and that there are no triable issues of fact that Plaintiff's role, job duties and expectations were ministerial, rather than secular. Plaintiff has genuinely disputed a number of the facts relied on by Defendant to prove Plaintiff occupied a ministerial role, which alone can be enough to support a denial of the motion. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 ["[I]f a triable issue is raised as to any of the facts in your separate statement, the motion must be denied! [Citations, internal quotation marks omitted.]"] and *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 521 [holding that a party moving for summary judgment who relies on facts that it designated undisputed to argue in its favor on summary judgment cannot then deem those same facts immaterial when they are disputed by the opposing party].)

In its reply, even if the Court considered the untimely arguments, International Foursquare argues that Plaintiff is asking the Court to consider "inconsequential factors" such as Plaintiff's training and title (Reply p. 2, l. 27), but the case law is clear that there is no rigid set of factors that are determinative in every case. The reply suggests that Plaintiff participating in the SLT and considering herself a "leader" of the church are the determinative factors. (Reply pp. 3-5.) But the terms "participate" and "leader" as demonstrated by the conflicting evidence before the Court do not have a definitive meaning unrelated to the factual context in which they are used.

Defendant contends Plaintiff "participated" in SLT meetings, but Plaintiff has presented evidence that her "participation" consisted of being present for the meetings purely for purposes of obtaining information regarding events and activities the church was planning, under Pastor Fry's religious and spiritual direction, so that in her roles as director of operations, facilities, and finance should could execute those plans. (See, e.g., Marhx Decl. ¶¶ 14, 18, 24, 29, 31, 34, 35, 38-41, 54-55 [others on the SLT "brainstormed about the direction of the church, including events, spending, improvements,

church teaching, and more but Plaintiff "did not participate in these discussions, but offered operational information when [she] was asked in order to determine whether certain directions could be followed" based on budget and operational capacity and staffing concerns], 57-67 [among other things, showing that Plaintiff was not classified as a ministerial employee under The Rock's criteria]; Pl. Resp. to UMFs 16-19, 21, 23-30, 35, 37, 38, 40, 42; Pl. AFs 56, 57, 62-66, 68-75, 88-95, 100, 105-110, 112, 118-125.)

As to her role as a "leader" of the church, among other evidence, Plaintiff has attached her website bio from The Rock's website describing her "leadership" role with the church. (Marhx Decl. ¶¶ 9, 10 and Exh. 1.) Her title as a "director" suggests a "leader," but the description of her role makes no reference to any leadership role with respect to the spiritual, religious, or pastoral function of the church. (Marhx Decl. ¶ 10 and Exh. 1 ["As director of Finance and Operations, Denea oversees our finance, personnel, facility and IT teams. She manages the budget and provides oversight of The Rock's finances along with our church council."] and Marhx Decl. ¶ 42 and Exh. 3 [describing job duties of director of finance as including "Work[ing] with Executive Pastor, and ministry Pastors/Leaders to prepare an annual budget for approval by the Senior Pastor and Church Council, and implements it upon approval," supporting an inference that others at the church are the ministry leaders, but not the person in this position].) While International Foursquare contends the evidence regarding her leadership role supports the ministerial exception, Plaintiff's contrary evidence regarding her leadership role as Director of Finance and Operations being a secular role supports that there are triable issues of fact that cannot be resolved by summary judgment.

The Court is aware that the job description attached as Exhibit 3 to the Marhx Declaration includes some references that could support Plaintiff being deemed subject to the ministerial exception: "The Finance Director at East Bay Fellowship works directly with the Senior and Executive Pastor's in decision making and managing the business affairs of the church and working with staff to achieve the church's mission objectives. Daily involvement in accounting, HR, and office/facility administration is expected. The church office is the hub of communication and requires efficient clerical office management and improvements in day-to-day operations. It is a ministry of the church; the person in this position will be extending the ministry of The Rock to our employees, our members, and the surrounding community; and is responsible for answering questions related to all financial policies of the Church, including issues related to charitable contributions. In all of their actions, they should be positive and supportive of the Core Values and the Vision of the church." (Marhx Decl. ¶ 42 and Exh. 3.) The Court considers the description in light of all the conflicting evidence before the Court regarding Plaintiff's role with The Rock, as summarized in detail above. While The Rock may consider the church office to be a "ministry" of the church, Pastor Wong's deposition testimony explains the expansive use of the label "ministry" in church language, supporting an alternative meaning of the term that does not support application of the ministerial exception here. (*See, e.g.*, Pl. Resp. to UMF 25 [citing, among other evidence, Wong DT 117:2-6 ["when you work at a church, we just label things ministry even though the day-in/day-out, her tasks were functional, not ministerial," referring to Plaintiff's tasks]; Marhx Decl. ¶¶ 61-67 [Plaintiff not classified as a ministerial employee under The Rock's classification criteria].)

The record demonstrates that there is a genuine dispute and triable issues as to whether Plaintiff's position at The Rock qualifies under the ministerial exception to bar her claims. The determination

under the case law is not subject to a rigid test but is evaluated under the totality of the facts concerning the employee's position, job title, job duties, and performance expectations, among other factors. (*Hosanna-Tabor, supra*, 565 U.S. at 190, 192; *Our Lady of Guadalupe, supra*, 591 U.S. at 753-754, 758.) On summary judgment, the Court is obligated to decide factual disputes in favor of the nonmoving party. (*Hope International, supra*, 119 Cal.App.4th at 738.) Here, Plaintiff has presented a substantial factual and evidentiary record in opposition to the motion showing that Plaintiff's job duties and expectations were primarily, if not entirely, secular, and that her performance was reviewed based on secular criteria in managing The Rock's finances, physical operations, event planning, and human resources issues from a legal, tax, and accounting compliance standpoint. The evidence is in conflict and supports conflicting inferences as to whether Plaintiff's role was "ministerial" so as to make the exception applicable.

Conclusion and Ruling

Defendant's motion is based solely on its attempt to classify Plaintiff, as a matter of law, as an employee within the ministerial exception. (*Hope International, supra*, 119 Cal.App.4th at 738; *Atkins, supra*, 90 Cal.App.5th at 1345.) (*See also Su v. Stephen S. Wise Temple* (2019) 32 Cal. App. 5th 1159, 1169-1170.) The record does not support such a determination as a matter of law under the flexible, nonexclusive factors described in the leading United States Supreme Court's decisions as applied in the California case law.

The record also does not show as a matter of law that the Court reviewing Plaintiff's claims for retaliation and wrongful termination will require the Court to wade into religious or doctrinal matters involving the church, ecclesiastical or biblical issues, which might interfere with International Foursquare's religious freedom and autonomy in religious matters. Defendant did not submit UMFs or argument that Defendant terminated Plaintiff from her position with The Rock on religious grounds or for violation of The Rock's religious tenets. (*See, e.g., Sumner v. Simpson University* (2018) 27 Cal. App. 5th 577, 593-594 [holding Court determining breach of employment contract claim for termination of employee not barred by the ministerial exception "because review of the breach of contract claim does not require a review of Sumner's religious qualification or performance as a religious leader"].)

The motion is **DENIED**.

Plaintiff's Evidentiary Objections

Plaintiff filed evidentiary objections to Mr. Fry's declaration. The Court is only required to rule on those objections the Court finds are material to its ruling. (Code Civ. Proc. § 437c(q).) The Court does not find the objections material to the outcome of the motion, given the Court's ruling that triable issues exist based on the evidence, precluding summary judgment.